Rc. No. 15565535/Crime 3(2)/2026
Dated: 06.11.2026

Office of the
Director General of Police/
Head of Police Force,
Tamil Nadu, Chennai - 04

CIRCULAR MEMORANDUM

Sub: Arrest procedure – Communication of Grounds of Arrest –Directions of the Hon'ble Madras High Court in Crl. O.P. No. 22765 of 2026, dated: 07.09.2026 – Instructions issued – Regarding

Ref: 1. Order of the Hon'ble Madras High Court in Crl. OP. No. 22765 of 2026, dated 07.09.2026

2. Chief Office Circular Memorandum in Rc. No. 12244800/Crime 4(3)/2025, dated: 23.11.2025

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Kind attention is invited to the subject and references cited.

2. The Hon'ble High Court of Madras, in its order dated 07.09.2026 in Crl. OP. No. 22765 of 2026, has issued mandatory directions to the Director General of Police, Tamil Nadu, regarding compliance with the provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS) relating to arrest, communication of grounds of arrest, recording of reasons for arrest, and intimation to relatives/friends.

3. Para 37 of the said High Court Order dated: 07.09.2026, is extracted below:

> *37. The third respondent, the Director General of Police, Tamil Nadu, shall —*
>
> *(a) cause the printed proforma now in use for the communication of the grounds of arrest to be withdrawn and replaced by a form which requires the arresting officer to set out, in narrative form and in his own words, the facts constituting the accusation, the acts attributed to the person arrested, the material on which the arrest is founded, and every offence for which the arrest is made, it being made clear in the form itself that the heads in Section 35(1)(b)(ii) of the*

Sanhita are the reasons for arrest and are not a substitute for its grounds;

(b) issue instructions that the grounds so recorded shall be furnished in writing to the arrested person, preferably in a language he understands wherever possible, upon arrest where the material is already with the police, and in no event later than two hours before he is produced for remand, in conformity with Mihir Rajesh Shah v. State of Maharashtra;

(c) issue instructions that the need and necessity for arrest shall be recorded with reasons referable to the facts of the particular case, and that the practice of writing "yes" against each of the heads in Section 35(1)(b)(ii) of the Sanhita, or of mechanically reproducing all of those heads, shall be discontinued, in conformity with Arnesh Kumar v. State of Bihar and Satender Kumar Antil v. Central Bureau of Investigation, 2026 INSC 115;

(d) issue instructions that the intimation required by Section 48 of the Sanhita to a relative, friend or nominated person shall be effected and recorded in every case and that the column provided for the purpose shall not be left blank;

(e) cause the revised form and the instructions to be circulated to every unit of the police force in the State, including every specialised wing, and to be included in the training of officers empowered to arrest; and

(f) file a report of compliance before the Registrar General of this Court within eight weeks from the date of receipt of a copy of this order.

4. Therefore, all Unit Officers are instructed to ensure strict compliance with the above directions of the Hon'ble High Court, without any deviation and to ensure that the revised printed pro forma enclosed in the Annexure is adopted and followed scrupulously in all cases of arrest.

5. The instructions regarding recording and furnishing the grounds of arrest, documenting the reasons for and necessity of arrest and communicating the arrest to a relative, friend or nominated person shall be strictly adhered to in accordance with the relevant provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023, and the directions of the Hon'ble

Court. The revised pro forma shall be brought to the notice of all officers empowered to arrest, including those serving in specialized units, and necessary instructions shall be issued to ensure uniform implementation.

6. Further, the Unit Officers are instructed that, in cases where the arrested person is not familiar with Tamil or English, the contents may be recorded in English and read over and explained to the arrestee in a language known to him/her. The translator shall affix his/her signature in acknowledgement of the translation and may also be cited as a witness in the said case.

7. Receipt of this circular memorandum shall be acknowledged.

Sd/- MAHESH KUMAR AGGARWAL
Director General of Police/
Head of Police Force

Encl: Format

To

1. The Heads of Special Units
2. The Commissioners of Police in Cities
3. The Superintendents of Police in Districts

Copy to

1. The Addl. Director General of Police, Law & Order, Chennai
2. The Inspectors General of Police in Zones
3. The Deputy Inspectors General of Police in Ranges
4. The ADSP, High Court Cases Monitoring Cell, Chief Office (for uploading the circular in the HCCAS)
5. Stock File

//T.C.F.B.O//

6/11/24
Assistant Inspector General of Police,
(HCCMC)
06.11.24

GROUNDS OF ARREST FURNISHED TO THE ARRESTED PERSON UNDER SEC. 47 OF THE BNSS, 2023

கைது செய்யப்பட்ட நபருக்கு கைதுக்கான காரணங்களை 47 BNSS, 2023–ன் படி தெரிவிக்கும் அறிவிப்பு

Police Station காவல் நிலையம்	
Crime No. குற்ற எண்.	
Acts and Sections சட்டங்கள் மற்றும் பிரிவுகள்	

Particulars of the Arrested Person கைது செய்யப்பட்ட நபரின் விவரங்கள்	
Name பெயர்	
Father/Husband/Guardian Name தந்தை/கணவர்/பாதுகாவலர் பெயர்	
Address முகவரி	
Mobile No. கைபேசி எண்.	

Details of Arrest கைது விவரங்கள்	
Date & Time of Arrest கைது செய்யப்பட்ட தேதி மற்றும் நேரம்	
Place of Arrest கைது செய்யபட்ட இடம்	
Date, Time & Place of Communication of Grounds of Arrest கைதுக்கான காரணங்கள், தெரிவிக்கப்பட்ட தேதி, நேரம் மற்றும் இடம்	
Name & Designation of the Police Officer who made the arrest கைது செய்த காவல் அதிகாரியின் பெயர் மற்றும் பதவி	

GROUNDS OF ARREST

கைதுக்கான காரணங்கள்

1. **The gist of the FIR:** (Give a gist of the FIR in single paragraph/ முதல் தகவல் அறிக்கையின் (FIR) சுருக்கத்தை ஒரே பத்தியில் வழங்கவும்)
(Note: In cases involving seizure of drugs, the exact weight of the contraband seized shall be specifically mentioned herein/ போதைப்பொருட்கள் கைப்பற்றப்படும் வழக்குகளில், கைப்பற்றப்பட்ட போதைப்பொருட்களின் சரியான எடையினை இங்கு குறிப்பாகக் குறிப்பிட வேண்டும்)

2. **Accusation against the Arrested Person, Role, Search and Seizure Details:** (Briefly state the accusations against the arrested person, his/her specific role in the offence and the details of any search conducted and articles seized, if any, in a single paragraph/ கைது செய்யப்பட்ட நபருக்கு எதிரான குற்றச்சாட்டுகள், குற்றச் செயல்களில் அவருக்குள்ள குறிப்பிட்ட தொடர்பு மற்றும் பங்கு, மேலும் ஏதேனும் சோதனை மேற்கொள்ளப்பட்டு பொருட்கள் கைப்பற்றப்பட்டிருந்தால், அதன் விவரங்கள் ஆகியவற்றை ஒரே பத்தியில் சுருக்கமாகக் குறிப்பிடவும்.)

3. **Reasons and Necessity for Arrest under Section 35(1)(ii) of BNSS, 2023:** (The arresting officer shall, in his/her own words, clearly record the reasons and necessity for making the arrest, considering the facts and circumstances of the case, as required under Section 35(1)(ii) of the BNSS, 2023/ கைது செய்யும் அதிகாரி, வழக்கின் உண்மைகள் மற்றும் சூழ்நிலைகளைக் கருத்தில் கொண்டு, BNSS, 2023–ன் பிரிவு 35(1)(ii)–ன் கீழ் கோரப்பட்டுள்ளபடி, கைது செய்வதற்கான காரணங்கள் மற்றும் அதன் அவசியத்தைத் தனது சொந்த வார்த்தைகளில் தெளிவாகப் பதிவு செய்ய வேண்டும்)

For example, கைது செய்யப்படாவிட்டால், நீங்கள் தானாகவோ அல்லது மற்ற எதிரிகளுடன் இனைந்தோ சாட்சிகளை கலைக்கவோ அல்லது மிரட்டவோ, ஆதாரங்களை அழிக்கவோ அல்லது மறைக்கவோ, விசாரனைக்கு இடையூறு வளைவிக்க வாய்ப்புள்ளதால், குற்றச்சாட்டுகளின் தீவிரத்தன்மை மற்றும் தடையற்ற, முழுமையான விசாரனையை உறுதி செய்வதற்காக உங்களை கைது செய்வது அவசியமாகியுள்ளது)

Signature of the
arrested person

கைது செய்யப்பட்ட
நபரின் கையொப்பம்

Signature & Seal of the
Officer who made the arrest

கைது செய்த காவல் அதிகாரியின்
கையொப்பம் மற்றும் முத்திரை

*(**Note:** In cases where the arrested person is not familiar with Tamil or English, the contents may be recorded in English and read over and explained to the arrestee in a language known to him/her. The translator shall affix his/her signature in acknowledgement of the translation and may also be cited as a witness in the said case)*

Rc.No.12244800/Crime-4(3)/2025

Office of the
Director General of Police,
Head of Police Force,
Tamil Nadu, Chennai-04.
Dated: 23.11.2025

CIRCULAR MEMORANDUM

Sub:- Police – Crime – Arrest of Accused – Communication in Writing – Orders of the Hon'ble Supreme Court of India Communicated – Instructions issued – Regarding.

Ref:- 1. Orders of the Hon'ble Supreme Court of India, dated 06.11.2025 in Criminal Appeal No.2195 of 2025.

2. Letter in Criminal Appeal No.2195 of 2025, dated 10.11.2025 of the Ld. Public Prosecutor, Madras High Court, Chennai.

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Attention of all Unit Officers are invited to the subject and references cited.

2. The Hon'ble Supreme Court of India while hearing Criminal Appeal No.2195 of 2025 formulated the following two questions of law for consideration:

(a) Whether in each and every case, even arising out of an offence under Indian Penal Code, 1860 ("IPC 1860") now Bharatiya Nyaya Sanhita, 2023 (BNS 2023) would it be necessary to furnish grounds of arrest to an accused either before arrest or forthwith after arrest, and

(b) Whether, even in exceptional cases, where on account of certain exigencies it will not be possible to furnish the grounds of arrest either before arrest or immediately after arrest, the arrest would be vitiated on the ground of non-compliance with

the provisions of Section 50 of the CrPC 1973 (now Section 47 of BNSS 2023).

3. By way of its judgment dated: 06.11.2025, the Hon'ble Supreme Court has held that:

i. The Constitutional mandate of informing the arrestee the grounds of arrest is mandatory in all offence under all statues including offences under IPC 1860 (now BNS 2023);

ii. The grounds of arrest must be communicated in writing to the arrestee in the language he / she understands;

iii. In case (s) where, the arresting officer / person is unable to communicate the grounds of arrest in writing on or soon after arrest, it be so done orally. The said grounds be communicated in writing within a reasonable time and in any case at least two hours prior to production of the arrestee for remand proceedings before the magistrate.

iv. Mere communication of the grounds in a language not understood by the person arrested does not fulfill the constitutional mandate under Article 22 of the Constitution of India.

v. The Police officers should inform the arrestee of his right to indicate his relative, friend or such other person for the purpose of giving information with regard to his arrest.

vi. A duty has also been cast on the Police to forthwith thereafter inform of such arrest with reasons and the place where the arrested person is being held to such indicated person.

vii. It is by now settled that if the grounds of arrest are not furnished to the arrestee in writing, this non-compliance will result in breach of the constitutional and statutory safeguards

hence rendering the arrest and remand illegal and the person will be entitled to be set at liberty.

4. All the Commissioners of Police in Cities and the Superintendents of Police in Districts are requested to issue suitable instructions to all the SHOs/subordinate officers serving in their jurisdiction to strictly adhere to the above guidelines. Any deviation in this regard shall be viewed seriously and the violator shall be subjected to appropriate departmental disciplinary proceedings.

5. Receipt of this Circular Memorandum should be acknowledged.

Sd/- G. Venkataraman
Director General of Police/
Head of Police Force

To
All Commissioners of Police in Cities.
All Superintendents of Police in Districts.
All Heads of Investigating Special Units.

Copy to
The Additional Director General of Police, (Law & Order), Chennai.
All Inspectors General of Police in Zones.
All Deputy Inspectors General of Police in Ranges.

True Copy//Forwarded//By Order

Administrative Officer
(Crime Wing)

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11 NOV 2025

BY SPECIAL MESSENGER

HASAN MOHAMED JINNAH
Public Prosecutor,
High Court, Madras.

Law Officers Block
(3rd Floor)
High Court, Chennai-104
Per: 044 25342243
Off: 044 2534 0672
Email:pubprosch104@gmail.com

Criminal Appeal No. 2195 of 2025 dated 10.11.2025

To
The Director General of Police /
Head of Police Force,
Dr. Radhakrishnan Salai,
Chennai – 600 004 (w.e)

Sir,

Sub: Police – Arrest – Communication in writing - Orders of the Hon'ble Supreme Court of India - Communicated

Ref: Orders of the Hon'ble Supreme Court of India, dated 06.11.2025 in Criminal Appeal No. 2195 of 06.11.2025

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I enclose herewith a copy of the Orders of the Hon'ble Supreme Court of India and the essence of the Judgement is reproduced below for ready reference.

i) The constitutional mandate of informing the arrestee the grounds of arrest is mandatory in all offence under all statues including offences under IPC 1860 (now BNS 2023);

ii) The grounds of arrest must be communicated in writing to the arrestee in the language he / she understands;

iii) In case (s) where, the arresting officer / person is unable to communicate the grounds of arrest in writing on or soon after arrest, it be so done orally. The said grounds be communicated in writing within a reasonable time and in

any case at least two hours prior to production of the arrestee for remand proceedings before the magistrate.

iv) In case of non-compliance of the above, the arrest and subsequent remand would be rendered illegal and the person will be at liberty to be set free.

2) I request you to arrange to communicate the essence of the judgement of the Hon'ble Supreme Court of India in the form of a Circular to all the Police personnel concerned for strict compliance as non compliance will render the arrest and subsequent remand as illegal.

3) A copy of the Circular so issued may be arranged to be sent to this office for reference.

10/11

PUBLIC PROSECUTOR

3/3

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